Repairs, maintenance and damage when renting

During a residential tenancy

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General information

A rental property must always be fit to live in.

Landlords are responsible for repairing and maintaining the property so that it is in a reasonable state of repair, considering the age of the property, the amount of rent being paid, and the prospective life of the property.

This does not mean that the property must be in perfect condition.

The state of the property and the level of repair expected should be in proportion to the property's age and the amount of rent.

Tenants must keep the property in a reasonable state of cleanliness, considering the condition of the property at the start of the tenancy.

Tenants are responsible for minor maintenance including replacing light bulbs, cleaning windows, dusting, removing cobwebs and routine garden maintenance such as watering, mowing and weeding.

Getting repairs done

The tenant must have written permission from the landlord, including agreement on reimbursement, from the landlord, unless the repair is an **urgent repair**.

The tenant should request the repair in writing to the landlord explaining what needs fixing.

Even when repairs are not completed, a tenant should **never** stop paying the rent.

Withholding rent will put them in breach of their tenancy agreement and the tenancy may be terminated. See Resolving property repair, maintenance or damage disputes for options.

Types of repairs that are urgent

Tenants can arrange urgent repairs in these circumstances

Damage

Tenants must not cause or allow damage to the property, either intentionally or through lack of care or attention, including by other occupants or invited guests.

If the tenant causes or allows damage to the property, the landlord or agent can ask the tenant to arrange to repair the damage or to pay for the costs of the repairs if they are done by the landlord or agent.

Smoke alarms

Requirements for landlords

Requirements for tenants

Requirements in strata schemes

Who can repair or replace a smoke alarm?

Reimbursement of tenants

Natural disasters

If a property has been affected by a natural disaster, such as a flood, bushfire or storm, tenants and landlords have certain rights and responsibilities.

The tenant can move out temporarily and return once repairs have been carried out. The landlord is not obliged to find or pay for the tenant's temporary accommodation.

If the property is only partly uninhabitable, the tenant can choose to stay in the property while repairs are being carried out. Tenants should only consider doing this if the damage is relatively minor and there is no ongoing safety risk.

The tenant and landlord can formally end the agreement and re-sign a new agreement after the repairs are complete. Tenants should be aware that a higher rent could be included in the new agreement.

If the property is destroyed or becomes totally or partly uninhabitable, the landlord and tenant can mutually agree to end the tenancy (e.g on the grounds that the agreement is 'frustrated').

If no mutual agreement is possible, the tenant or landlord can give a written termination notice to end the tenancy. The tenant cannot be evicted without a Tribunal (https://www.ncat.nsw.gov.au/Pages/cc/Divisions/Tenancy/tenancy.aspx) order.

Repairs after a disaster

What happens to the rent?

If the tenant moves out temporarily or continues living in the partially damaged property, the rent should be waived or reduced.

This is up to the landlord and tenant to negotiate. Any agreement in these situations should be put in writing.

Resolving repair, maintenance or damage disputes

It is always best for a tenant and landlord or agent to try to negotiate a resolution together. If the issue can't be resolved this way, a tenant or landlord can:

contact Fair Trading's tenancy complaints and disputes service

lodge an application directly with the Tribunal (https://www.ncat.nsw.gov.au/Pages/cc/Divisions/Tenancy/tenancy.aspx).

In some situations, Fair Trading may issue a rectification order to landlords to undertake repairs, or to tenants to fix damage. Visit the Resolving rental problems (https://www.fairtrading.nsw.gov.au/housing-and-property/renting/resolving-rental-problems) page for more information.

A landlord or tenant can apply directly to the Tribunal (https://www.ncat.nsw.gov.au/Pages/cc/Divisions/Tenancy/tenancy.aspx) to resolve disputes about repairs, maintenance or damage to the property. The Tribunal can make various orders including:

that the landlord does repairs

that the tenant can pay their rent to the Tribunal until the repairs are done

that the tenant's rent be reduced until the repairs are done

to compensate the tenant for losses (e.g. damage to tenants' belongings from a leaking pipe after they told the landlord the pipe was leaking)

that the tenant repair damage they caused

that the tenant compensates the landlord for costs to repair damage the tenant caused

directing the landlord, landlord's agent or the tenant to comply with their obligations.

Visit the Resolving rental problems (https://www.fairtrading.nsw.gov.au/housing-and-property/renting/resolving-rental-problems) page for more information.

Prev (https://www.fairtrading.nsw.gov.au/housing-and-property/renting/during-a-tenancy/rent)
Rent

Next (https://www.fairtrading.nsw.gov.au/housing-and-property/renting/during-a-tenancy/Water,-electricity-and-gas-in-rental-properties)
Water, electricity and gas in rental properties

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Helpful information and links

Tenancy complaints service (https://www.fairtrading.nsw.gov.au/about-fair-trading/our-services/resolving-issues/residential-tenancy-complaints)

The Tribunal (https://www.ncat.nsw.gov.au/Pages/cc/Divisions/Tenancy/tenancy.aspx)

Find a licensed tradesperson (https://www.onegov.nsw.gov.au/publicregister/#/publicregister/search/Trades)

How to check a smoke alarm (https://www.fire.nsw.gov.au/page.php?id=444)